PAMPANGA STATE AGRICULTURAL UNIVERSITY
Project Monitoring Committee

January 8, 2026

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PAMPANGA STATE AGRICULTURAL UNIVERSITY MAGALANG PAMPANGA RECEIVED DATE: 1-8-26 TIME: 5:18 BY: RECORDS UNIT 0066

PRESIDENT'S OFFICE RECEIVED 1:43 01/12/26 DATE MAGALANG PAMPANGA

DR. ANITA G. DAVID
University President
This University

Subject: **Recommendation to Issue a Final Warning Notice to DAPER CONSTRUCTION AND TRADING**

Dear President David,

We respectfully submit this recommendation for the issuance of a Final Warning Notice to DAPER CONSTRUCTION AND TRADING regarding the uncompleted project titled "Construction of Animal Science and Fisheries Building."

The said project was scheduled for full completion on October 9, 2025, based on the approved time extension. Despite this agreed timeline, the contractor has failed to complete the project. Furthermore, on December 5, 2025, the Office of the President issued a Notice of Unnotified Work Stoppage to the contractor. To date, no response has been received, nor has any corrective action been undertaken.

This continued non-compliance and disregard for official communication has disrupted the University's operations and delayed the availability of critical infrastructure for academic purposes.

In view of the foregoing, the Project Monitoring Committee recommends that the University issue a Final Warning Notice to DAPER Construction and Trading, reiterating their contractual obligations and setting a strict and final deadline for compliance. The notice should also state that failure to comply will result in the initiation of contract termination procedures and possible legal remedies in accordance with university policies and procurement laws.

Issuing this final warning is necessary to protect the University's interests, uphold accountability, and ensure the timely completion of the project.

Thank you for your continued support to our project monitoring activities.

Yours sincerely,

PROJECT MONITORING COMMITTEE

DR. RODEL T. LORENZO
PMC Member

DR. SOLOMON L. ROQUE
PMC Member

ENGR. RONNIE E. BRIONES
PMC Member

ENGR. PAULO JAY B. RIVERA
PMC Member

MS. MARIE ANNE D. VALERIO
PMC Member

MR. ROGELIO G. ISIP
PMC Member

DR. MARIA CRISELLA DC. MERCADO
PMC Head

ATTY. REYMON E. FABROS
Legal Officer

Noted:

DR. RAFAEL R. RAFAEL
End-User

MS. MINA LYN G. ALVIZ, MAED 1/12/26
Acting Vice President for Admin. and Finance

APPROVED:

DR. ANITA G. DAVID
SUC President IV

PAMPANGA STATE AGRICULTURAL UNIVERSITY
Office of the President

January 9, 2026

AR. CANDIDO N. DAVID
General Manager
DAPER Construction and Trading
Kristina St, cor. Roperta St. Lourdes Heights Subd.
Del Rosario, City of San Fernando, Pampanga

Subject: **Final Warning Notice – Construction of Animal Science and Fisheries Building**

Dear Sir,

This communication serves as a Final Warning Notice concerning your firm's failure to complete the project entitled "Construction of Animal Science and Fisheries Building," which, under the approved time extension, was due for completion on October 9, 2025.

On December 5, 2025, the Office of the President issued a Notice of Unnotified Work Stoppage to your company. To date, no reply has been received and no corrective measures have been undertaken. Such continued non-compliance and disregard for official directives is unacceptable and has caused significant disruption to the University's operations.

This matter also carries broader institutional implications:

- **Department of Public Works and Highways (DPWH):** The delay compromises coordination with DPWH, which oversees infrastructure projects for compliance with national standards. Persistent non-completion may result in adverse reporting, reputational damage, and sanctions that could affect your eligibility for future government contracts.

- **National Economic and Development Authority (NEDA/DepDev):** The failure to deliver this facility undermines academic programs tied to national development priorities. It jeopardizes funding alignment, delays capacity-building initiatives, and diminishes the University's contribution to NEDA's development agenda.

In line with the contract provisions, please be reminded that liquidated damages will be imposed for each day of delay beyond October 9, 2025 until the project is fully completed. These penalties will be deducted from your contract payments and enforced under government procurement regulations.

You are hereby directed to:

- Submit a written explanation for your failure to meet the agreed timeline and for disregarding prior communication within **48 hours** of receipt of this letter.

- Provide a detailed work plan with a firm completion schedule within **three (3) calendar days**.

- Resume and complete the project within **seven (7) to ten (10) calendar days** without requesting further extensions.

- Deploy additional manpower to finish the remaining works and address the punch lists identified by the Project Monitoring Committee.

Failure to comply with these directives will compel the University to initiate contract termination procedures, enforce liquidated damages, and pursue appropriate legal remedies under university policies and procurement laws. In addition, the University will formally report this matter to DPWH and NEDA, which may result in blacklisting and disqualification from future government projects. Please be advised that the University is preparing its 4th quarter reports to these agencies, and your current performance will be reflected therein.

This constitutes your final opportunity to remedy the situation.

Sincerely,

ANITA G. DAVID, EdD
SUC President IV